



CHAPTER xlv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dundee Corporation (General Powers). A.D. 1930.
[28th March 1930]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has after inquiry held before Commissioners been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament :

62 & 63
Vict. c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Dundee Corporation (General Powers) Order Confirmation Act 1930.

Short title.

A.D. 1930.

SCHEDULE.

DUNDEE CORPORATION (GENERAL POWERS).

Provisional Order to confer powers on the Dundee Corporation as to Belmont Castle and Estate to make certain provisions in respect of the municipal administration and the water undertaking of the city and for other purposes.

WHEREAS the lord provost magistrates and councillors of the city and royal burgh of Dundee (hereinafter called "the Corporation" and "the city" respectively) are vested with the municipal and police administration thereof and are the local authority within the city under the Public Health (Scotland) Act 1897 :

And whereas the Corporation are the undertakers under the Dundee Water Acts 1869 to 1927 :

And whereas the lands property and estate known as Belmont Castle and the amenity grounds were gifted by the late Mrs. Emma Caird or Marryat to the Corporation upon the terms that the mansion house should be used as a home for the recovery to health of soldiers disabled during the great war and subject thereto should be utilised for the benefit of the community of the city in such ways as would commend themselves to the Corporation subject to the donor's suggestion and recommendation that the same should be used permanently as a home of rest for the workers of Dundee :

And whereas the first of such purposes is now at an end and it is desirable that the Corporation should be empowered to make regulations for the use of the said mansion house and pertinents as a home of rest for the workers of Dundee and to pay any deficit in the cost of the upkeep thereof out of the rates :

And whereas by the Dundee Corporation (Improvements and Tramways) Act 1913 (hereinafter called "the Improvements and Tramways Act of 1913") the Corporation were authorised to make and maintain inter alia

certain street works as described in that Act and to enter upon take and use the lands houses and property required for or in connection with the said works and for the other purposes therein described and it was provided that such street works should be completed within ten years from the commencement of that Act and that the powers of the Corporation for the compulsory purchase of lands for the purposes of that Act should cease after the expiration of six years from the commencement of that Act :

A.D. 1930.
—

And whereas by the Dundee Corporation (Improvements and Tramways) Act 1913 (Extension of Time) Order 1919 the Dundee Corporation Order 1920 and the Dundee Corporation and Water and Gas Order 1925 the time for the compulsory purchase of lands for the purposes of the Improvements and Tramways Act of 1913 has from time to time been extended and as a result the powers of the Corporation for the compulsory purchase of lands for the same cease on the fourth of July one thousand nine hundred and thirty :

And whereas owing to the difficulty of rehousing the people who would be disturbed and to the increased comparative costs of labour and materials it has not hitherto been possible to carry out the whole of the works authorised by the Improvements and Tramways Act of 1913 and it is expedient that the time limited for the purchase of lands therefor should be extended as by this Order is provided :

And whereas the time limited by the Dundee Corporation and Water and Gas Order 1925 for the compulsory purchase of lands will expire on the fifth day of March one thousand nine hundred and thirty and the time limited by the Dundee Corporation Order 1927 for the compulsory purchase of lands will expire on the twenty-second day of December one thousand nine hundred and thirty and it is expedient that such times should be extended as by this Order provided :

And whereas it is expedient that the further powers with regard to the electricity undertaking of the Corporation should be conferred as by this Order provided :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this

[Ch. xlv.] *Dundee Corporation* [20 GEO. 5.]
(General Powers) Order Confirmation Act, 1930.

A.D. 1930. Order authorised to borrow money and such estimates
 — are as follows :—

	£
In respect of the conveyance of Belmont Castle and the altering extending improving furnishing and equip- ment thereof - - - - -	10,000
In respect of the provision of buildings machinery and plant for treatment of refuse - - - - -	35,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a period of years :

And whereas it is expedient that the further powers and provisions hereinafter in this Order contained should be conferred on the Corporation and made as by this Order provided :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

Short title
and citation
of Acts.

1. This Order may be cited for all purposes as the Dundee Corporation (General Powers) Order 1930.

The Dundee Corporation Acts 1871 to 1929 and this Order may be cited together as the Dundee Corporation Acts 1871 to 1930.

The Dundee Water Acts 1869 to 1927 and this Order so far as relating to water and water purposes may be cited together as the Dundee Water Acts 1869 to 1930.

Division of
Order into
Parts.

2. This Order is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Public parks.
- Part III.—Extension of time.
- Part IV.—Water.

Part V.—Electricity.

A.D. 1930.

Part VI.—Cleansing.

Part VII.—Borrowing of money and rates and
 assessments.

Part VIII.—Miscellaneous.

PART I.

PRELIMINARY.

3. In this Order terms words and expressions to which meanings are assigned by the Dundee Police and Improvement Consolidation Act 1882 or by the Acts wholly or partially incorporated with this Order shall subject to the provisions of this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction Further in this Order the following expressions shall have the several meanings by this section assigned to them unless there be something in the subject or context repugnant to such construction (that is to say) :—

Interpre-
tation.

“ City ” means the city and royal burgh of Dundee ;

“ Corporation ” means the lord provost magistrates and councillors of the city ;

“ Sheriff ” means the sheriff of the county of Forfar and includes his substitutes ;

“ Sheriff clerk ” means the sheriff clerk of the county of Forfar ;

“ The Act of 1882 ” means the Dundee Police and Improvement Consolidation Act 1882 ;

“ The Improvements and Tramways Act 1913 ” means the Dundee Corporation (Improvements and Tramways) Act 1913 ;

“ The Order of 1920 ” means the Dundee Corporation Order 1920 ;

“ The Order of 1925 ” means the Dundee Corporation and Water and Gas Order 1925 ;

“ The Order of 1926 ” means the Dundee Corporation Order 1926 ;

“ The Order of 1927 ” means the Dundee Corporation Order 1927 ;

A.D. 1930.

“The commencement of this Order” means the date of the passing of the Act confirming this Order;

“Private street” means any street other than a public street not being or forming part of any harbour dock quay wharf railway railway station or dépôt.

PART II.

PUBLIC PARKS.

Convey-
ance of
Belmont
Estate and
mansion
house.

4.—(1) The Corporation as trustees of the common good may grant and execute to and in favour of the Corporation in their capacity as police commissioners conveyance of the lands property and estate known as Belmont Castle and the mansion house and offices thereof and the farms forming part of the said estate together with the whole buildings houses boundary walls walks trees shrubs and others thereon and all other the property and effects comprised in the gift of the said estate by the late Mrs. Emma Caird or Marryat and the furniture plenishing and implements used in connection therewith in trust to carry out the trusts powers and purposes of the said gift and subject thereto for the inhabitants of the city and its vicinity to be used in all time coming as a public park and place of recreation.

(2) Subject to the powers contained in the immediately preceding subsection and without prejudice to the generality thereof the Corporation shall be empowered to take all such steps as may be necessary to enable the said castle and other buildings to be adapted and used as a home of rest for the workers of Dundee and for the purposes thereof shall engage such staff and make such arrangements and frame such rules and regulations and fix such charges as may be necessary for the upkeep and conduct of the same or the Corporation may instead of themselves carrying on such a home arrange for the carrying on of the same by any suitable society or institution.

(3) All expenses of keeping the said estate and mansion house in proper order and repair and altering extending or improving the mansion house and for carrying on and keeping the same as a home of rest as aforesaid and for defraying the other expenses connected therewith including the payment of interest and

repayment of contributions on borrowed money in so far as the said expenses are not met by revenue derived from the said estate and mansion house may be met and defrayed out of the rate for the general police purposes mentioned in and such expenses shall be deemed to be embraced under the first head of section 32 (Estimates to be made up) of the Act of 1882 Provided that such expenses shall not exceed a rate of one halfpenny per pound. A.D. 1930.

(4) Subject to the provisions in this section contained and in addition thereto the provisions of Part XXV (Public parks and places of public resort or recreation) of the Act of 1882 shall apply to the said estate and mansion house as fully in all respects as if those provisions were herein enacted with reference thereto.

(5) The whole costs and expenses incurred and to be incurred in or about or in connection with the said conveyance shall be paid by the Corporation in their capacity as police commissioners and the Corporation shall refund to the common good of the city all sums standing at the debit of the Belmont Estates account as at Whitsunday one thousand nine hundred and thirty.

PART III.

EXTENSION OF TIME.

5. The period limited by section 30 (Limitation of time for compulsory purchase of lands) of the Improvements and Tramways Act 1913 as extended by the Dundee Corporation (Improvements and Tramways) Act 1913 (Extension of Time) Order 1919 the Order of 1920 and the Order of 1925 is hereby extended for a further period of five years to expire on the fourth day of July one thousand nine hundred and thirty-five. Extension of time for purchase of lands under Dundee Corporation (Improvements and Tramways) Act 1913.

6. The period limited by section 18 (Limitation of time for compulsory purchase of lands) of the Order of 1925 is hereby extended for a further period of five years and that section shall be read and have effect as if the words "ten years" were substituted for the words "five years" occurring therein. Extension of time for purchase of lands under Dundee Corporation and Water and Gas Order 1925.

A.D. 1930.

Extension
of time for
purchase of
lands under
Dundee
Corporation
Order 1927.

7. The period limited by section 31 (Limitation of time for compulsory purchase of lands) of the Order of 1927 is hereby extended for a further period of three years and that section shall be read and have effect as if the words "six years" were substituted for the words "three years" occurring therein.

PART IV.

WATER.

Varying
section 35 of
Waterworks
Clauses Act
1847 and
section 36
of Dundee
Water Act
1869.

8. Section 35 (A constant supply of water to be kept for domestic purposes at high pressure) of the Waterworks Clauses Act 1847 in its application to the Corporation shall be read and construed as if the words "one-eighth part" were substituted therein for the words "one-tenth part" and section 36 (Supply of water for domestic purposes beyond the limits for compulsory supply) of the Dundee Water Act 1869 in its application to the Corporation shall be read and construed as if the words "one-eighth part" were substituted therein for the words "one-tenth part."

Supply of
water for
refrigerating
apparatus.

9. Where a person who takes a supply of water from the Corporation for any purpose desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall be taken by meter on the conditions and paid for at the rates for the time being in force for the supply of water by the Corporation by meter or may charge for water so used on such other terms as may be agreed between him and the Corporation.

PART V.

ELECTRICITY.

Power to
lay electric
lines &c.
in private
streets.

10. The Corporation may upon the application of the owner or occupier of any premises in the city abutting on or in process of erection in any street laid out or made and whether dedicated to public use or not for the purpose of supplying such premises with electricity lay down take up alter relay or renew in across or along such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of

the Electricity (Supply) Acts 1882 to 1928 the Dundee Electricity Orders 1890 to 1913 and the Dundee Corporation Acts 1871 to 1927 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section The powers conferred by this section shall not extend to any street which is repairable by a railway company and is used for the purposes of their railway unless the consent of that company is obtained by the Corporation but such consent shall not be unreasonably withheld and upon an application made to the Minister of Transport by the Corporation the Minister may if he thinks fit determine whether a consent has unreasonably been withheld to the exercise by the Corporation of their powers under this section.

A.D. 1930.

—

11. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1928 the Dundee Electricity Orders 1890 to 1913 and the Dundee Corporation Acts 1871 to 1927 the Corporation may construct and maintain in or under any public street within the city sub-stations transforming stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient Provided that the Corporation shall not construct any such sub-station transforming station or work (a) in or upon any bridge carrying a street over a railway of a railway company or the approaches thereto or under any bridge carrying such a railway over a street or within ten feet of any abutment of any such bridge or (b) in any street belonging to or repairable by a railway company and forming the approach to any station or depot of such company or (c) so as to interfere with or render less convenient the access to or exit from any station or depot of a railway company constructed and maintained under statutory authority except with the consent in writing of the railway company.

Power to construct electrical substations under streets.

12. No consumer shall without the consent in writing of the Corporation use or suffer to be used (whether after transformation or conversion or not) for purposes of lighting or illuminating or for any process operation or purpose involving or requiring the use of light (all of

Use for lighting purposes of electricity supplied for power.

A.D. 1930. which purposes are in this section referred to as “lighting purposes”) the whole or any part of any electricity supplied to him by the Corporation for any other purpose Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for any purpose other than lighting purposes shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as for the time being they may be charging for the supply of electricity for the purpose for which the electricity is used by the consumer for all or any portion of the electricity which has been supplied to him for any other purpose within one year previous to the date when the Corporation shall sue for any penalty as aforesaid Any court having jurisdiction to impose such penalty may and shall on the application of the Corporation decide upon what portion (if any) of such electricity the higher charge as aforesaid shall be payable to the Corporation The provisions of section 18 (Power to refuse to supply electrical energy in certain cases) of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

Provisions
as to
supply of
electricity
by agree-
ment.

13. If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply electricity to such consumer until they are reasonably satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement A consumer supplied with electricity by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required to supply energy within the meaning of section 30 (Penalty

for failure to supply) of the Schedule to the Electric Lighting (Clauses) Act 1899 and section 27 (Penalty for failure to supply) of the Dundee Electric Lighting Order 1890 and the provisions of those sections shall apply to the supply afforded by the Corporation under such agreement unless the provisions of those sections are expressly excluded from application in any such agreement and if the Corporation fail to supply energy to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation. Provided that the provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the commencement of this Order of any right to which he would be entitled but for the said provisions.

A.D. 1930.

14. The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of electricity taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for those premises the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 (Arbitration) of the Electric Lighting Act 1882. The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the commencement of this Order of any right to which he would be entitled but for the said provisions.

As to
maximum
power
which
may be
demanded.

15. Any person who shall hinder an officer appointed by the Corporation from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings) of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings. Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 are unoccupied

Entry upon
premises
Penalty for
obstruction.

A.D. 1930. — the Corporation may after giving not less than forty-eight hours notice to the owner thereof or if he is unknown to the Corporation and cannot be ascertained after diligent inquiry after affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

Notice to
discontinue
supply of
electricity.

16. A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall be sufficient if it be given personally by the consumer at the offices of the electricity undertaking of the Corporation or be given in writing signed by or on behalf of the consumer and left at or sent by post to the said offices. Notice of the effect of this section shall be endorsed upon every demand note for charges for electricity.

Protection
of seals &c.
belonging to
the Corpo-
ration.

17. The provisions of section 38 (Penalty for injuring meters) of the Gasworks Clauses Act 1871 incorporated with the Electric Lighting Act 1882 shall apply to any person who wilfully fraudulently or by culpable negligence injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle meter or apparatus inserted by the Corporation in any electric line within a consumer's premises or opens or suffers to be opened any such sealed or locked receptacle meter or apparatus.

PART VI.

CLEANSING.

Ashbins.

18.—(1) The Corporation may require the proprietor of any new or existing building used as a dwelling-house or dwelling-houses to remove or shut up the ashpits in rear of or connected with such building and may also require such proprietor to provide portable ashbins of a construction approved by the superintendent of cleansing and in such number as may be required by such superintendent and on such ashbins being provided in accordance with the provisions of this subsection the Corporation shall maintain and when necessary renew such ashbins provided the proprietor shall pay to the Corporation in respect of the Corporation's obligation to maintain and renew each such ashbin the sum of two shillings annually.

(2) The Corporation may also enter into agreements with proprietors of buildings used as aforesaid at present provided with ashbins that the Corporation shall where the proprietor has provided or provides a portable ashbin of a construction approved of by the superintendent of cleansing maintain and when necessary renew such ashbins provided the proprietor shall pay to the Corporation as the agreed cost of the maintenance and renewal of each such ashbin the sum of two shillings annually. A.D. 1930.

19.—(1) The Corporation may provide such buildings machinery plant and substances as may be required for the destruction separation or treatment of any refuse or other material collected by them or on their behalf and for the utilisation by way of manufacture or otherwise of any such refuse or other material whether before or after incineration. Machinery &c. for treatment of refuse.

(2) Any article or product manufactured or obtained under this section may be sold or otherwise disposed of by the Corporation and any profit so made shall be paid into the rate for general police purposes.

PART VII.

BORROWING OF MONEY AND RATES AND ASSESSMENTS.

20.—(1) The Corporation may from time to time (in addition to any moneys they are now authorised to borrow or raise) borrow or raise for the several purposes of this Order sums not exceeding the amounts hereinafter mentioned for the respective purposes following (that is to say) :— Power to borrow or raise additional moneys.

- (a) In respect of the conveyance of Belmont Castle and the altering extending improving furnishing and equipment thereof the sum of ten thousand pounds;
- (b) In respect of the provision of buildings machinery and plant for the treatment of refuse the sum of thirty-five thousand pounds;
- (c) In respect of the costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto such sum as may be necessary.

A.D. 1930.

(2) All moneys borrowed under this section shall be applied only to the purposes for which they are authorised to be borrowed.

(3) If having borrowed any money under the powers of this section the Corporation pay off the same or any part thereof otherwise than by instalments or by means of a sinking fund as in this Part of this Order prescribed or out of the proceeds of the sale of lands or other moneys received by them on capital account (not being borrowed moneys) they may re-borrow the same and so on from time to time Provided that all moneys so re-borrowed shall for the purposes of repayment be deemed part of the original advance and shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing has been made.

Certain provisions of former Act and Order as to borrowing to apply.

21. Part V (Estimates and assessments) and Part XXXVII (Borrowing and raising of money) of the Act of 1882 and the provisions of the Order of 1926 shall except as otherwise by this Order provided extend and apply to this Order in the same way and to the same effect as if the purposes of this Order were purposes of the said Act and Order :

Provided that section 321 (Repayment of money borrowed other than that due now by instalments of sinking fund in sixty years) of the Act of 1882 in its application to all moneys to be borrowed or raised under the powers of this Order in respect of Belmont shall be read and have effect as if the period of repayment thereof were ten years from the borrowing or raising thereof instead of forty years as mentioned in the said section as amended by this Order :

Provided also that the said section 321 in its application to all moneys to be borrowed or raised under the powers of this Order in respect of the provision of buildings machinery and plant for the treatment of refuse shall be read and have effect as if the period of repayment thereof were twenty-five years from the borrowing or raising thereof instead of forty years as mentioned in the said section as amended by this Order.

22. Section 321 (Repayment of money borrowed other than that due now by instalments of sinking fund in sixty years) of the Act of 1882 shall in its application to moneys borrowed by the Corporation under this Order or any subsequent local Act or Order be read and have effect as if the words "forty years" were substituted for the words "sixty years" wherever the said words "sixty years" appear in the said section and as if the words "one fortieth" were substituted for the words "one sixtieth" where they appear in the said section.

A.D. 1930.

—
 Amend-
 ment of
 section 321
 of the
 Dundee
 Police and
 Improve-
 ment Con-
 solidation
 Act 1882.

PART VIII.

MISCELLANEOUS.

23. Where in the judgment of the Corporation it is not expedient that any private street should be paved or causewayed and flagged and channelled to the full extent or otherwise made good it shall be lawful for the Corporation to cause any such private street or any part thereof to be only temporarily put in order and in carrying out this enactment the Corporation may cause all or any of the following works to be executed viz. :—

Temporary
 works on
 private
 streets.

- (1) The carriageway to be properly levelled and laid with road metal or such other material as they shall deem proper;
- (2) Lines of kerb to be laid in such position to such level and of such size shape and material as the Corporation may determine;
- (3) Channels or gutters with gratings or gullies to be made to carry off the water;
- (4) Temporary footways or crossings to be formed and made using gravel or road metal or other material to secure the public convenience.

And it shall be lawful for the Corporation from time to time to cause such temporary works to be renewed And provided always that the Corporation may at any time after two years subsequently to the execution of such temporary works or any renewals thereof cause the street or any part thereof to be permanently paved or causewayed and flagged and channelled or otherwise

A.D. 1930. — made good in a manner provided for in regard to private streets in the Dundee Corporation Acts 1871 to 1927 or to cause the footways to be permanently laid in the manner provided for in regard to foot pavements of streets in the said Acts at any time they may deem proper though the causeway and channels or gutters be not permanently completed till a subsequent time :

Provided that any person whose properties may be affected by any action of the Corporation under this section and who thinks himself aggrieved thereby may appeal to the sheriff within fourteen days thereafter provided he gives twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the sheriff shall have power to make such order as he may think fit.

Seats in streets.

24. The Corporation may provide and place or authorise the placing of seats in or on any of the promenades streets roads or other thoroughfares or spaces of the city provided that a sufficient free space be left open and available for traffic on the carriageways and foot pavements.

Public shows &c. not to be opened or set up in city without sanction of Corporation.

25. No public show of any description whatever whether in open ground or in any house or building or caravan or tent and no swings or roundabouts and no shooting gallery singing or dancing saloon or bowling or nine-pin alley and no place for playing skittles (all of which are hereinafter shortly described or referred to as public shows and other like places of public entertainment) shall be opened or set up within the city without the permission of the Corporation and it shall be lawful for the Corporation to regulate restrain remove or prohibit all such public shows and other like places of public entertainment and to make and establish regulations and prohibitions to that effect and if any person shall open or set up or be concerned in opening or setting up any such public show or other like place of public entertainment without the sanction or permission of the Corporation or shall contravene any such regulation or prohibition all such persons shall for every such offence be liable to a penalty not exceeding five pounds and also to a continuing penalty of five pounds for every day during which the offence

is committed or continued Provided that the expression "public shows and other like places of public entertainment" shall not include any fair held by statute royal charter licence letters patent or ancient custom. A.D. 1930.
—

26.—(1) If the Corporation shall by resolution determine that any banner streamer sign or lettering suspended across or hung over any street within the city for the purpose of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the street across or over which such banner streamer sign or lettering is suspended or hung they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer sign or lettering to remove the same within such period not being less than seven days as may be specified in the notice. Banners and signs over streets.

(2) Any person neglecting or refusing to comply with the requirements of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar banner streamer sign or lettering without the permission in writing of the Corporation or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

(3) For a period of two years from the commencement of this Order the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the thirtieth day of November one thousand nine hundred and twenty-eight.

(4) Any person aggrieved by any requirements of any notice of the Corporation or the withholding of permission by the Corporation or the conditions attached to any such permission under the provisions of this section may appeal to the sheriff within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and

A.D. 1930. — of the grounds thereof to the town clerk and the sheriff shall have power to make such order as he may think fit Notice of the right to appeal shall be endorsed on every notice of the Corporation under this section.

Direction
signs.

27.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the direction or the distances to towns railway stations public buildings and other places of a public character.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to the sheriff within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the sheriff shall have power to make such order as he may think fit Notice of the right to appeal shall be endorsed on every notice given by the Corporation under this section.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

Restric-
tions on
erection of
temporary
stands &c.

28.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such regulations as the Corporation may prescribe for securing the stability of such stand or structure and for securing the safety of persons to be accommodated thereon Provided that the provisions of this section so far as regards the obligation to submit a plan and section shall not apply to any person who is a roundabout proprietor travelling showman or stall holder not being a pedlar or hawker.

(2) Any person acting in contravention of this section or offending against any such regulation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

29.—(1) The Corporation may make regulations A.D. 1930.
prescribing within the city—

- (a) as respects omnibuses in general or omnibuses of any particular class or used on any particular route or running according to a published timetable the stands which may be occupied exclusively by them and the places where they may stop for longer than is necessary for the purpose of picking up and setting down passengers;
- (b) the time during which any omnibus shall be allowed to remain at a prescribed stand or stopping place.

Regulations as to stands or stopping places of omnibuses.

(2) Where the Corporation propose to make regulations under this section they shall cause notice of their proposal and a statement of the effect of the proposed regulations to be published in at least one newspaper circulating within the city and shall serve a copy of the notice upon the proprietor of every omnibus licensed to ply for hire within the city.

(3) Every such notice shall indicate the date (which shall not be less than twenty-eight days) within which any objection to the regulations shall be sent in writing to the Corporation and shall contain a notification of the place at which copies of the proposed regulations may be obtained free of charge.

(4) The Corporation shall consider and determine any objection to the proposed regulations which is sent to them in writing within the time fixed in that behalf and shall send notice of their decision to the objector who if he is dissatisfied with their decision may within fourteen days after the receipt of the notice appeal to the Minister of Transport.

(5) A notification of the right of appeal under this section shall be included in any notice sent by the Corporation of their decision on an objection to the regulations and upon any appeal being made to the said Minister notice in writing of the appeal and of the grounds thereof shall be given by the appellant to the Corporation.

(6) The said Minister shall consider any appeal duly made to him and may make such order in the matter as he thinks fit and his decision shall be final.

A.D. 1930.

(7) Before making any order under this section the said Minister may and if an appeal duly made is not withdrawn shall (unless the appeal appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the Corporation shall pay to the said Minister any expenses incurred by him in relation to any such inquiry including the expenses of any witnesses summoned by the person holding the inquiry and a sum to be fixed by the said Minister for the services of such person.

(8) Where an objection has been made to regulations proposed by the Corporation under this section the regulations shall not be made by the Corporation until after the expiration of the time within which the appeal may be made by the objector to the said Minister or if an appeal to the said Minister has been made by the objector until after the determination or withdrawal of the appeal.

(9) Any company body or person running omnibuses in the city may at any time apply to the said Minister to modify any regulation made under this section on the ground that such regulation as in force for the time has been found to be or has become unsuitable for the traffic requirements of the city or has been unfairly enforced and upon any such application the said Minister after considering any representations made to him by the Corporation may modify the regulation to which the application relates.

(10) The Corporation shall not exercise the powers of this section to the extent of affecting prejudicially any bridge or road belonging to or maintained by any railway company or so as to obstruct the access to or exit from any station depot or other property of any railway company.

(11) The provisions of this section shall cease to operate if and when provisions to a similar effect are contained in a general Act coming into force within the city.

Power
to impose
test on
motor
drivers.

30.—No person shall be entitled to drive a motor vehicle licensed by the Corporation as a hackney carriage (which expression shall in this section include an omnibus) unless he shall have satisfied the Corporation of his

ability to drive and for that purpose the Corporation may impose such reasonable test as they may think fit: A.D. 1930.

Provided that this section shall not apply to any person who has already passed a test of his ability to drive made by any other authority body or person under any public general or local Act.

31. The magistrates may in their discretion refuse to grant a licence to ply for hire with a hackney carriage or omnibus if the applicant fails to satisfy them that he effects and keeps on foot an insurance with a responsible insurance company against or makes adequate financial provision for meeting any liability that may be incurred by him in respect of any injury or damage occasioned by such hackney carriage or omnibus to any person or property but in the event of any licence to ply for hire with an omnibus being refused under this section the applicant shall be entitled to appeal to the Minister of Transport under the provisions of subsection (3) of section 14 of the Roads Act 1920 and all the provisions of that subsection shall apply accordingly Provided that in the case of an application to the Corporation by a railway company for the grant of a licence to ply for hire the provisions of this section shall not apply. Insurance by hackney carriage proprietors.

The provisions of this section shall cease to operate if and when provisions requiring the owners of motor vehicles to hold an insurance policy or other security against third-party risks contained in a general Act come into force within the city.

32. The powers conferred on the Corporation by the sections of this Order of which the marginal notes are respectively "Regulations as to stands or stopping places of omnibuses" "Power to impose test on motor drivers" and "Insurance by hackney carriage proprietors" shall not be exercised so as to affect to the prejudice of the Dundee Broughty Ferry and District Traction Company any terms with respect to the running of a joint service of omnibuses under section 6 of the Dundee Corporation Order 1929 and section 5 of the Dundee Broughty Ferry and District Traction Order 1929 which may be agreed between the said Company and the Corporation or failing such agreement determined by the Minister of Transport. For protection of Dundee Broughty Ferry and District Traction Company.

A.D. 1930.

Removal
of infirm
and
diseased
persons in
certain
cases.

33.—(1) If the medical officer of health of the city (hereinafter called the “medical officer”) certifies in writing that any person—

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(b) is suffering from any grave chronic disease

and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interest of the health of such person and for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to the sheriff and the sheriff upon oral proof of the allegations in such certificate and subject to examination of such person by a registered medical practitioner to be nominated by the sheriff (if he thinks fit) may make an order for the removal of such person to a suitable hospital infirmary or other institution or other suitable place provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period or periods each not exceeding three months as may be determined by any further order or orders made under and in accordance with the provisions of this section :

Provided that not less than three clear days before making any application under this subsection for the removal of any person the medical officer shall give notice in writing to the inspector of poor of the parish council of Dundee Combination of his intention so to do.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this section or to some person being in charge of such person three clear days’ notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The cost of the removal of any person to a hospital infirmary or other institution or place as afore-

said and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which a person is so detained the Corporation may and if so required by the sheriff shall make towards the maintenance of any dependants of that person such contributions as the Corporation think fit or as may be directed by the sheriff as the case may be. A.D. 1930.
—

(4) An order made under this section may be addressed to such officer of the Corporation or to such person as the sheriff making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after the expiration of six clear weeks from the making of the order an application may be made to the sheriff by or on behalf of the person in respect of whom the order was made for the rescission of the order and the sheriff may make a rescission order accordingly if having regard to the circumstances of the case he is of opinion that it is right and proper that such rescission order should be made.

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The powers of this section shall not be put into operation by the medical officer of health unless he is authorised by a resolution of the Corporation so to do either generally or in any particular cases in which those powers are proposed to be exercised.

34.—(1) The occupier of any building in the city which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer of health of the city at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the said medical officer of health may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease. Information to be furnished in case of infectious disease.

A.D. 1930.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expressions "occupier" and "infectious disease" shall have the same respective meanings as in the Infectious Disease (Notification) Act 1889.

Penalty for
making
false
returns.

35. Any factor agent or person acting for or in name or on behalf of a proprietor or tenant or occupier of lands and heritages who shall knowingly or wilfully present or cause to be presented to the assessor for the city under the Lands Valuation Acts a false statement of the yearly rent or value of any such lands and heritages within the city belonging to or occupied by the proprietor or tenant or occupier for or in name or on behalf of whom he acts be liable to the penalty imposed by the said Acts upon proprietors tenants or occupiers of lands and heritages presenting or causing to be presented false statements to such assessor and such penalty shall be recovered and applied in the way and manner provided by the said Acts.

As to
penalties
and
recovery
thereof.

36.—All proceedings for the recovery of penalties imposed or authorised to be imposed by or under the provisions of this Order shall be proceeded with and be conducted under and in conformity with the Summary Jurisdiction (Scotland) Act 1908 and any Acts extending or amending the same.

Saving
clause for
Dundee
Harbour.

37.—(1) Nothing contained in Part V (Electricity) of this Order shall empower the Corporation to open or break up any street or other place or to supply energy within the limits of the harbour of Dundee without the consent of the trustees of the harbour of Dundee first had and obtained.

(2) In respect that the said trustees themselves cleanse the harbour the property belonging to and occupied by the said trustees shall be exempt from any assessment in connection with the interest and any other expenses or losses in respect of the provision of machinery for the treatment of refuse under section 19 (Machinery &c. for treatment of refuse) of this Order.

(3) Nothing contained in this Order or in any Act incorporated in whole or in part with this Order shall

repeal alter diminish or affect any rights interests titles A.D. 1930.
dues powers jurisdictions immunities privileges exemp-
tions and authorities of the said trustees secured under
any statutes of and relating to the said trustees and
their harbour undertaking or under any of the Acts
public local or private relating to the Corporation.

38. The costs charges and expenses of and incident Costs of
to the preparing and applying for and the issue of this Order.
Order and the confirmation thereof by Parliament or
otherwise in relation thereto shall be paid by the Cor-
poration and charged to the various departments of the
Corporation in such proportions as the Corporation shall
hereafter decide Any money borrowed for paying any
such costs charges and expenses shall be repaid within
five years from the commencement of this Order.

Printed by EYRE and SPOTTISWOODE LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C. 2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.

THE UNIVERSITY OF CHICAGO

PHYSICS DEPARTMENT

1954-1955

PHYSICS 101

LECTURE NOTES

BY

ROBERT A. FETTER